



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

April 13, 2023

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202106307 (Incident Date: October 18, 2021) regarding Police Officer Arthur Sturman, Tax No. 961336 (DADS No. 2022-27698)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in this matter and determined that the CCRB does not have sufficient evidence to substantiate the allegation against Police Officer Arthur Sturman. In this matter, the complainant, a 311 caller, made thirteen calls to 311 within a sixteen-minute span regarding parking conditions. A few minutes after the complainant's last call, the complainant received what he believed to be a singular threatening text message, which was revealed to have been sent through a "Text Me Now" application. CCRB and the Internal Affairs Bureau conducted separate investigations, both of which established misconduct against Detective Samantha Sturman in relation to this incident. The CCRB further opined that Detective Sturman worked in concert with her brother, Police Officer Arthur Sturman, to send the text message. However, the Internal Affairs Bureau could not substantiate any misconduct against Police Officer Arthur Sturman.

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The CCRB's reasoning for substantiating misconduct against Police Officer Arthur Sturman was that they opined that the evidence *suggested* that both Detective Sturman and Police Officer Arthur Sturman acted in concert, although the CCRB investigation could not prove who actually sent the text message. The CCRB's substantiated finding was largely based on evidence that the user who created the "Text Me Now" application had an email address that was similar to the one utilized by Police Officer Arthur Sturman and that when a newspaper called the phone number associated with the account a male answered. There is no other evidence supporting the findings against Police Officer Arthur Sturman.

While the Police Commissioner will not disturb the findings against Detective Sturman, there is insufficient evidence to substantiate the allegation against Police Officer Arthur Sturman. Further, Police Officer Arthur Sturman stated that he was not involved in sending the text message and that he was not at home when the message was sent. No evidence has been offered to refute those statements.

Therefore, based on the foregoing, the Police Commissioner has determined that Police Officer Arthur Sturman will receive no disciplinary action for alleged violation of Administrative Guide Procedure 304-06 (1) (Prohibited Conduct/Threat of Force) and Patrol Guide Procedure 200-02 (Mission, Vision, and Values of the New York City Police Department/Discourtesy).

Yours truly,

A handwritten signature in black ink, appearing to read 'L. Soto', with a stylized flourish at the end.

Lourdes Soto
Deputy Chief
Commanding Officer
Police Commissioner's Office